ORDINANCE NO. 23-031Z-SUB A

Town of North Providence

AN ORDINANCE AMENDING

CHAPTER 35 of the Town Code

Note: Words set as ~~strikeover~~ are to be **deleted** from the ordinance; words set in underline are to be **added** to the ordinance.

Article VIII – Special Provisions

803. Development Requiring Planning Board Approval

Where only Planning Board approval is required, including projects that undergo Unified Development Review, an applicant is vested on the date that the Planning Board certifies the application is complete. The applicant is vested under the Zoning Ordinance and regulations in effect at the time of certification not the date of application.

805. ~~Development Requiring Both Planning Board and Zoning Board Approval~~ Precedence of Approvals and Unified Development Review.

A. Unified development review established. There shall be unified development review for the issuance of variances and special use permits for properties undergoing development plan review and/or land development or subdivision review.

B. Public hearing. All land development and subdivision applications, and development plan review applications that include requests for variances and/or special-use permits submitted pursuant to this section, shall require a public hearing that meets the requirements of Article V, Section 502.

C. In granting requests for variances, the permitting authority shall be bound to the requirements of Article IX Section 901 relative to entering evidence into the record in satisfaction of the applicable standards.

D. In reviewing requests for special use permits the permitting authority shall be bound to the conditions and procedures under which a special use permit may be issued and the criteria for the issuance of such permits, as found within the zoning ordinance Article V, section 506 and shall be required to provide for the recording of findings of fact and written decisions as described in the zoning ordinance pursuant to Article X.

E. Appeals. An appeal from any decision made pursuant to this section may be taken pursuant to Article X.

~~F. Where both Planning Board and Zoning Board approvals are required for development, an applicant is vested when the Zoning Enforcement Officer certifies that the plans are complete under the respective guidelines and regulations of the Subdivision and Zoning Ordinance including Article IX of this Ordinance. The applicant is vested under the Zoning Ordinance and regulations in effect at the time of the certification, not the date of application~~

§806. Administrative Modifications

A. General - The Zoning Enforcement Officer ~~may~~ is authorized to grant modification permits, pursuant to the provisions of this Section, ~~grant a modification or adjustment~~ of up to and including fifteen percent (15%) from the literal dimensional requirements of Article II herein in the instance of the construction, alteration, or structural modification of a structure or lot of record~~, to a limited degree as determined herein~~. ~~Administrative modifications are limited to minor structural items that are part of the primary structure.~~

B. Procedure

(1) The applicant shall submit, on a form prescribed by the Zoning Enforcement Officer together with a proposed site plan, the need and justification for the requested modification.

(2) Within ten (10) days of receipt of a request for a modification, the Zoning Enforcement Officer shall make a decision as to the suitability of the requested modification based on the following determinations:

a) The modification requested is reasonably necessary for the full enjoyment of the permitted use;

b) If the modification is granted, neighboring property will neither be substantially injured nor its appropriate use substantially impaired;

c) ~~The modification requested is in harmony with the purposes and intent of the comprehensive plan and zoning ordinance of the city or town~~ The modification requested does not violate any rules or regulations with respect to freshwater wetlands;

d) The modification requested does not require a variance of a flood hazard requirement unless the building is built in accordance with applicable regulations.~~; and~~

~~e) The relief to be granted is the least relief necessary.~~

(3) Upon an affirmative determination, the Zoning Enforcement Officer shall notify, by ~~registered or certified~~ first class mail, all owners of property abutting the property which is the subject of the modification request, as shown on the latest Tax Assessor's records, and shall indicate the street address of the subject property in the notice, and shall publish in a newspaper of ~~general~~ local circulation within the ~~city or~~ town that the modification will be granted unless written objection is received within ~~thirty (30)~~ fourteen (14) days of the public notice.

a) If written objection is received within ~~thirty (30)~~ fourteen (14) days, the request for a modification shall be ~~denied~~ scheduled for the next available hearing before the Zoning Board of Review on application for a dimensional variance following the standard procedures for such variances, including notice requirement provided for under this chapter. ~~In that case the changes requested will be considered a request for a variance and may only be issued by the zoning board of review following the standard procedures for variances.~~

b) If no written objections are received within ~~thirty (30)~~ fourteen (14) days, the Zoning Enforcement Officer shall grant the modification.

(4) The Zoning Enforcement Officer may apply such special conditions to the permit as may, in the opinion of the officer, be required to conform to the intent and purposes of the zoning ordinance.

(5) The Zoning Enforcement Officer shall keep public records of all requests for modifications, and of findings, determinations, special conditions, and any objections received.

(6) Costs of any notice required under this subsection shall be borne by the applicant requesting the modification.

~~C. Maximum Modifications~~

~~The Zoning Enforcement Officer may grant dimensional modifications for building setbacks and lot widths only up to, but not to exceed, the following:~~

~~(1) Maximum Modifications Table~~

~~Building Setbacks and Lot Width Modifications~~

~~Zoning District~~	~~Front Yard~~	~~Rear Yard~~	~~Side Yard~~	~~Lot Width~~
~~Residential Zones~~				
~~RS12 & 8~~	~~5 feet~~	~~5 feet~~	~~2.5 feet~~	~~10 feet~~
~~RL10 & 13~~	~~5 feet~~	~~5 feet~~	~~2.5 feet~~	~~10 feet~~
~~RG~~	~~5 feet~~	~~5 feet~~	~~2.5 feet~~	~~10 feet~~
~~Commercial Zones~~				
~~CP~~	~~3.5 feet~~	~~3.5 feet~~	~~3.5 feet~~	~~——~~
~~CV~~	~~3.5 feet~~	~~3.5 feet~~	~~3.5 feet~~	~~——~~
~~CG~~	~~3.5 feet~~	~~3.5 feet~~	~~3.5 feet~~	~~——~~
~~Manufacturing Zones~~				
~~ML~~	~~3.5 feet~~	~~7 feet~~	~~3.5 feet~~	~~——~~

MG	6 feet	8 feet	6 feet	----

No other dimensional modifications shall be allowed except in accordance Article V of this Ordinance.

(1) Should a dimensional modification be approved, nothing herein shall obligate the Zoning Enforcement Officer to approve the maximum modification.

§807. Development Plan Review

A. Development plan review is hereby required by the Zoning Board for all new construction of commercial, manufacturing and multi-household uses including: Development plan review established. There shall be development plan review for uses that are permitted by right under the zoning ordinance and identified in the Land Development and Subdivision Regulations and confirmed by the Administrative Officer as eligible for review under this section.

(1) Any new commercial, manufacturing or multi-household structure.

(2) Any expansion of a commercial, manufacturing or multi-household structure.

(3) Any new construction of commercial recreational structures.

(4) Any change of a residential use to a commercial, manufacturing, multi-household or institutional use.

B. Development Plan Contents. Every development plan submitted in accordance with this Section shall show the following: Permitting authority. The permitting authority shall be as identified in the Land Development and Subdivision Regulations.

(1) Name and address of the owners and developers of the tract.

(2) Boundary of the entire tract and any adjacent or contiguous parcels in the same ownership.

(3) Area and proposed use of tract.

(4) Date, scale, north arrow and number of sheets:

a) Plan must be designed to scale by either an architect or engineer licensed in the State of Rhode Island.

b) When more than one (1) sheet is required, a cover sheet drawn to suitable scale shall show the whole site and indicate match lines for each page of the plan.

(5) All building setback lines, easements and rights-of-way.

(6) Detail of adjacent properties and public ways as they related to the subject premises, to the neighborhood and to the street pattern.

(7) Fire lanes as approved by the Fire Chief.

(8) Stamp of a registered engineer or registered land surveyor.

C. Required Improvements. The following improvements may be required by the Town:

~~Specific and objective guidelines~~. Design of all projects shall be consistent with the provisions of the Land Development and Subdivision Regulations.

~~(1) Sidewalks or easements for future sidewalks to connect stores and buildings within the site and to adjacent sites.~~

~~(2) Construction of travel lanes not less than twelve (12) feet in width, to permit travel on the site and to and from adjacent parking area and adjacent property or where deemed necessary a separation between parking areas.~~

~~(3) Connection wherever possible of all walkways, travel lanes and driveways with similar facilities in adjacent developments.~~

~~(4) Screening, fences, and/or walls where adjacent to residential districts.~~

~~(5) Adequate drainage system for the disposition of storm and natural waters.~~

~~(6) Temporary and permanent erosion and sedimentation control measures.~~

~~(7) Curbs and sidewalks as required by the provision of this Ordinance and other ordinances of the Town.~~

~~(8) Landscaped area and planting strips between the parking area and the street and adjacent property and other landscaping treatment including, but not limited to, trees suitable to the area which compliment the surrounding area that will enhance that premises and make the parking area acceptable and attractive. The types and methods of planting may be specified.~~

~~(9) The location of signs in relation to overall plan.~~

~~(10) Existing and proposed topography with a maximum of two foot contour intervals.~~

D. ~~Procedure for Processing~~ Waivers. The authorized permitting authority may grant waivers of design standards as set forth in the Land Development and Subdivision Regulations.

~~(1) Pre-Submission Conference – before submitting a development plan, an applicant for development plan approval shall meet with a staff member of the Planning Department to discuss the proposed project, and to establish what documents and information the applicant must submit. The required contents of the development plan will depend on the scope and complexity of the proposed project. The staff member may recommend that the Development Plan Review Board vary or waive the required information if it is deemed unnecessary or burdensome.~~

~~(2) Submission to the Zoning Enforcement Officer – Three (3) sets of development plans shall be submitted to the Zoning Enforcement Officer, who shall review said plans for compliance with the Zoning Ordinance, and if said plans are in compliance with said Ordinance, he shall forward said plans to the Development Plan Review Board for their review.~~

E. Technical Review Committee ~~Development Plan Review Board – There is hereby established a Development Plan Review Board which shall consist of the Building Official, the Director of the Planning Department, the Director of the Public Works~~

~~Department, the Fire Marshall, the Crime Prevention Officer ("CPO"), a non-voting member of the Town Council and the Planning Board Chairman. The Building Official shall chair the board and the Planning Director shall be the board secretary. The Board may request and shall receive assistance from all other Town departments in the performance of their review.~~

(1) There is hereby established a technical review committee (TRC) in accordance with RIGL §45-23-56 the members of which are appointed by the North Providence Town Council. The TRC is responsible for conducting technical reviews of all applications as directed by the permitting authority.

(2) The TRC may consist of the following but shall not consist of less than three (3) members: the Building Official, the Director of the Planning Department, who shall be the chair, the Director of the Public Works Department, the Fire Marshall, the Police Chief or their designee, a non-voting member of the Town Council and the Planning Board Chair~~man~~.

(3) The Planning Board shall adopt written procedures establishing the committee's responsibilities.

(5) Recommendations of the TRC to the permitting authority shall be in writing and kept as part of the permanent record of the development application. In no case shall the recommendations of the TRC be binding on the permitting authority in its activities or decisions. The recommendations of the TRC shall be made available to the applicant prior to a decision by the permitting authority.

(6) Review of applications in an advisory capacity.

a) The TRC may review the following types of applications in an advisory capacity:

i. Minor land development projects and subdivisions; advisory to the permitting authority as determined in the Land Development and Subdivision Regulations.

ii. Major land development projects and subdivisions; advisory to the permitting authority as determined in REFERENCE, provided that the TRC reviews the application prior to the permitting authority's first meeting on the application.

iii. Administrative subdivisions at the request of the administrative officer, advisory to the administrative officer.

iv. Comprehensive permit applications; advisory to the permitting authority.

v. Minor modifications or changes to land development and subdivision applications.

vi. Administrative development plan review applications; advisory to the administrative officer as requested by the administrative officer.

vii. Formal development plan review applications; advisory to the permitting authority.

viii. Other matters referred to the TRC by the permitting authority or town council.

~~(7) Appeal.~~

§808. Land Development Projects

A. Land development projects established. There shall be land development project review as defined in the Land Development and Subdivision Regulations for development projects in which one or more lots, tracts, or parcels of land, or a portion thereof, are to be developed or redeveloped as a coordinated site for one or more uses, units, or structures, including, but not limited to, planned development or cluster development for residential, commercial, institutional, recreational, open space, or mixed uses.

B. The requirements, procedures, and standards for review and approval of land development projects are provided in the Land Development & Subdivision Regulations.

C. Development and Subdivision regulations.

APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: January 2, 2024

Approved: January 9, 2024

Council President

Mayor

Town Clerk